

On June 28, 2019, the Permanent Mission of Ecuador to the OAS informed the Department of International Law that this questionnaire was responded by the relevant national institutions, (verbal note 4-2 -186/2019)

QUESTIONS AND ANSWERS RE NOTE VERBALE OEA/2.2/14/19 SUBMITTED BY THE TECHNICAL SECRETARIAT OF THE INTER-AMERICAN JURIDICAL COMMITTEE (CJI), FORWARDING A QUESTIONNAIRE ON THE APPLICATION OF INTERNATIONAL LAW TO MEMBER STATES OF THE ORGANIZATION OF AMERICAN STATES (OAS) IN THE CONTEXT OF CYBERSPACE

QUESTIONS

1. Has your Government previously issued an official paper, speech, or similar statement summarizing how it understands international law applies to cyber operations? Please provide copies or links to any such statements.

Answer: We are not aware of any official paper the Government of Ecuador has issued on cyber operations.

- 2 Do existing fields of international law (including the prohibition on the use of force, the right of self-defense, international humanitarian law, and human rights) apply to cyberspace? Are there areas where the novelty of cyberspace excludes the application of a particular set of international legal rights or obligations?

Answer: Yes. The fields of international law do apply to cyberspace.

- 3 Can a cyber operation by itself constitute a use of force? Can it constitute an armed attack that triggers a right of self-defense under Article 51 of the UN Charter? Can a cyber operation qualify as a use of force or armed attack without causing the violent effects that have been used to mark such thresholds in past kinetic conflicts?

Answer: The individual or collective right to self-defense is set forth in Article 51 of the UN Charter, which states: "Nothing in the present Charter shall impair the inherent right of individual or collective self-defense if an armed attack occurs against a Member of the United Nations, until the Security Council has taken measures necessary to maintain international peace and security."

According to NATO, a cyber attack is "an offensive or defensive cyber operation that is intended to cause injury or kill people or to damage or destroy objects." According to this concept, it can be considered an armed attack.

4. Outside of armed conflicts, when would a state be responsible for the cyber operations of a non-state actor? What levels of control or involvement must a state have with respect to the non-state actor's operations to trigger the international legal responsibility of that state?

Answer: States cannot be held liable for an attack by a non-state actor, but there should be some way [for them] to collaborate to find the perpetrators. Furthermore, a state is responsible for regulating/setting standards for services to prevent territory belonging to a state from being launch an attack.

5. Are the standards of state responsibility the same or different in the context of an armed conflict as that term is defined in Articles 2 and 3 common to the 1949 Geneva Conventions?

Answer: Under the provisions of the Geneva Convention, states are responsible for complying with the rules in armed conflicts, even where there are parties that are not party to the Convention.

6. Under international humanitarian law, can a cyber operation qualify as an “attack” for the rules governing the conduct of hostilities if it does not cause death, injury or direct physical harm to the targeted computer system or the infrastructure it supports? Could a cyber operation that produces only a loss of functionality, for example, qualify as an attack? If so, in which cases?

Answer: A cyber operation can qualify as an attack if it renders inoperable a state’s critical infrastructure or others that endanger the security of the state.

7. Is a cyber operation that only targets data governed by the international humanitarian law obligation to direct attacks only against military objectives and not against civilian objects?

Answer: International humanitarian law prohibits attacks on civilian targets, hence a cyber operation must be regulated, so that attacks can only be against military targets.

8. Is sovereignty a discrete rule of international law that prohibits states from engaging in specific cyber operations? If so, does that prohibition cover cyber operations that fall below the use of force threshold and which do not otherwise violate the duty of non-intervention?

Answer: Sovereignty is closely linked to the presence of a physical space, which is why applying it in cyberspace is not as clear-cut. The characteristics of cyberspace, especially because it is intangible, make it impossible to appropriate and therefore make it impossible for a state to exercise sovereignty. But it does have sovereignty over cyber infrastructure and over any activity that is related to these infrastructures. However, this rule does not prevent a state from engaging in cyber operations.

9. Does due diligence qualify as a rule of international law that states must follow in exercising sovereignty over the information and communication technologies in their territory or under the control of their nationals?

Answer: States are responsible for managing information and communication technologies within their territories, hence due diligence is applicable to what happens with technological resources within national territory.

10. Are there other rules of international law that your government believes are important to highlight in assessing the regulation of cyber operations by states or actors for which a state is internationally responsible?

Reply: It is necessary to establish how to regulate attacks against military and/or civilian targets that affect the huge sections of the population, such as the case of critical infrastructure, hospitals, public transportation, and other infrastructure affecting state security.